

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUOE065551: ASHLEY ADAMS vs LUXOTTICA OF AMERICA, INC.
08/03/2026 in Department 44
Motion to Compel Arbitration

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Luxottica of America, Inc.’s Motion to Compel Arbitration of Individual PAGA Claims and to Stay Representative PAGA Claims

Tentative Ruling:

Defendant Luxottica of America, Inc.’s Motion to Compel Arbitration of Individual PAGA Claims and to Stay Representative PAGA Claims is GRANTED.

Plaintiff Ashley Adams is ordered to submit to binding arbitration her individual PAGA claims, that is, her claims for PAGA civil penalties or other PAGA relief predicated on Labor Code violations allegedly suffered by Plaintiff herself, in accordance with the parties’ Dispute Resolution Agreement.

Plaintiff’s nonindividual PAGA claims based on alleged violations suffered by other employees are not dismissed. Those claims, and all further proceedings and discovery in this action, are STAYED pending completion of the arbitration.

The Court sets a status conference re: Arbitration on **August 3, 2027 at 8:30 a.m.** The parties are ordered to file a joint report concerning case status 10 days prior to the status conference.

Defendant to give notice.

I. Background

A. Factual Background

Plaintiff Ashley Adams (“Plaintiff”) alleges that she was employed by Defendant Luxottica of America, Inc. (“Luxottica”) from approximately November 18, 2024, through October 15, 2025, and that she performed her job competently. Luxottica is alleged to be an Ohio corporation doing business throughout California, including Ventura County. (Compl., ¶¶ 3, 6.)

Plaintiff alleges that Luxottica maintained institutionalized compensation practices applicable to its California employees that deprived Plaintiff and other aggrieved employees of protections afforded by the Labor Code and applicable Industrial Welfare Commission wage orders. (Compl., ¶¶ 7, 10-17.) Plaintiff estimates that the alleged aggrieved group consists of approximately 350 current and former California employees. (Compl., ¶¶ 11-12.)

According to the Complaint, Luxottica improperly classified Plaintiff and similarly situated employees as exempt. Plaintiff alleges that, because of this classification, the employees were not paid overtime regardless of the hours worked and were not provided legally compliant meal or rest periods. She further alleges that employees were denied minimum wages, overtime compensation, meal- and rest-period premiums, accurate wage statements, reimbursement of necessary business expenses, and all compensation due upon separation. (Compl., ¶¶ 10-13.)

Plaintiff alleges that Luxottica lacked compliant meal- and rest-period policies and pressured employees to skip or shorten breaks because of workload and coverage concerns. She identifies three shifts during which she allegedly worked more than eight hours without receiving a meal period: July 7, July 24, and September 8, 2025. She alleges that no corresponding meal-period premium was paid. Plaintiff also alleges that Luxottica knew that employees worked outside their scheduled or reported hours and during breaks but failed to compensate that time. (Compl., ¶¶ 24-26 and Exs. 2-4.)

Plaintiff alleges that any meal- or rest-period premiums Luxottica did pay were calculated at the employee’s base rate rather than the regular rate of pay; that Luxottica failed to include all hours, wages, and premiums on employees’ wage statements; that employees incurred unreimbursed cell-phone and work-supply expenses; and that separated employees were not timely paid all wages due. (Compl., ¶¶ 27-61.)

Luxottica contends that before Plaintiff began employment, she electronically acknowledged the 2023 EssilorLuxottica Employee Guide and the accompanying Dispute Resolution Agreement. Defendant claims that Plaintiff completed the acknowledgment on November 7, 2024, and that acceptance of the agreement was a condition of employment. (Def.’s MPA, pp. 9-10; Fahimi Decl., Ex. 1, pp. 6-8.)

Dispute Resolution Agreement (“DRA”): The agreement, contained in the EssilorLuxottica Employee Guide and attached as Exhibit 1 to the Fahimi declaration, is a bilateral agreement governed by the Federal Arbitration Act (“FAA”).

The agreement requires the employee and EssilorLuxottica, including its affiliates and subsidiaries, to resolve covered disputes through final and binding arbitration before a single neutral arbitrator rather than through a court or jury trial. Its coverage expressly includes claims concerning employee classification, minimum wages, overtime, commissions and bonuses, meal and rest periods, expense reimbursement, other compensation, discrimination, harassment, retaliation, contract, tort, and separation from employment. The arbitrator has exclusive authority to decide disputes concerning the agreement’s validity, scope, applicability, enforceability, and waiver, although a court must decide challenges to the class-action waiver, collective-action waiver, and PAGA individual-action requirement. The agreement excludes certain claims for workers’ compensation, disability, unemployment, and ERISA benefits, as well as claims that federal law makes nonarbitrable, and it preserves the employee’s right to file charges with governmental agencies. (Fahimi Decl., Ex. 1, pp. 9-11 [Employee Guide pp. 69-71], §§ 1-2.)

The agreement provides for arbitration near the employee’s last work location, permits specified depositions, interrogatories, document requests, expert discovery, and additional discovery authorized by the arbitrator, and allows dispositive motions. The arbitrator must apply the governing substantive law and Federal Rules of Evidence and issue a written decision stating the factual and legal basis for the award. Luxottica must pay the arbitration expenses exceeding the filing fees the employee would have paid in court, including the arbitrator’s fees.

The agreement prohibits class and collective arbitration and separately requires that any PAGA claim seeking civil penalties or other relief based on violations personally experienced by the employee be arbitrated individually; the arbitrator has no authority to adjudicate PAGA claims on behalf of other employees. Any unenforceable portion of the class, collective, or PAGA provisions is severable and must proceed in court rather than class or representative arbitration. (Fahimi Decl., Ex. 1, pp. 11-13 [Employee Guide pp. 71-73], §§ 3-11.)

An accompanying electronic acknowledgment states that acceptance of the agreement was a condition of employment and reflects an electronic signature entered as “Ashley Adams.” (Fahimi Decl., Ex. 1, pp. 6-8.)

B. Procedural Background

On November 5, 2025, Plaintiff’s counsel sent Luxottica a request to inspect and obtain Plaintiff’s personnel file, payroll records, and copies of the employment documents she had signed. (Compl., Ex. 6.)

On December 11, 2025, Plaintiff submitted a PAGA notice to the Labor and Workforce Development Agency and mailed a copy to Luxottica. The notice identified the Labor Code provisions allegedly violated and the supporting facts and theories. Plaintiff alleges that the statutory period for the LWDA and employer to respond expired before suit was filed. (Compl., ¶¶ 8-9, 16 and Ex. 1.)

On April 30, 2026, Plaintiff filed the present representative PAGA action in Ventura County Superior Court. The complaint asserts six categories of alleged Labor Code violations: meal- and rest-period violations, minimum-wage violations, overtime violations, wage-statement violations, failure to reimburse necessary business expenses, and failure to pay all wages upon separation. (Compl. First through Sixth Causes of Action.)

On June 17, 2026, Luxottica's counsel sent Plaintiff's counsel a copy of the Dispute Resolution Agreement and requested that Plaintiff stipulate to arbitrate her individual PAGA claims. Defendant also asked Plaintiff to withdraw her pending discovery requests or agree to hold discovery in abeyance until the arbitration issue was resolved. (Fahimi Decl., ¶ 2 and Ex. 1, pp. 4-5.)

On June 29, 2026, Plaintiff's counsel responded that Plaintiff did not believe her claims were subject to arbitration. The parties therefore did not reach an agreement concerning arbitration. (Fahimi Decl., ¶ 3.)

On July 2, 2026, Luxottica filed the present motion to compel arbitration. Defendant asks the Court to compel Plaintiff's individual PAGA claims to binding arbitration, stay the nonindividual representative PAGA claims pending completion of that arbitration, and stay further court proceedings, including discovery. (Def.'s MPA, pp. 8-11, 18-21.)

Plaintiff opposed the motion, and Luxottica filed a reply.

No trial date has yet been set in this case.

II. Preliminary Matters

A. Request for Judicial Notice

Plaintiff requests judicial notice of seven superior court rulings addressing motions to compel arbitration in PAGA actions. Under Evidence Code section 452, the Court may take judicial notice of court records. Such notice goes to whether the rulings were issued, of their contents, and of the dispositions reflected in them. Judicial notice does not, however, establish the truth of factual findings made in those unrelated proceedings or the correctness of their legal conclusions. (Evid. Code § 452; *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569.)

The rulings also do not control the present motion. They are superior court decisions involving different pleadings, arbitration agreements, evidentiary records, and representations regarding whether the plaintiffs sought individual PAGA relief. Their relevance and persuasive value therefore depend on the similarity of the particular facts and contractual language. The Court must independently decide this motion under the governing appellate authority, the allegations of Plaintiff's operative complaint, and the terms of the DRA presented here. The Court declines to consider these prior superior court rulings that have no precedential value.

Accordingly, Plaintiff's Request for Judicial Notice is DENIED as irrelevant.

B. Evidentiary Objections

1. Objections to the Declaration of Khatera S. Fahimi

No. 1: OVERRULED.

No. 2: SUSTAINED in part and OVERRULED in part. The objection is sustained to the extent Fahimi offers oral testimony to prove the precise contents of the June 29 email without attaching the email. Personal knowledge does not, by itself, eliminate the restriction on using oral testimony to prove the content of an available writing. The objection is overruled as to Fahimi's independently known statements that the parties did not reach an agreement, that Defendant filed the motion, and that Defendant remained willing to confer or stipulate.

2. Objections to the Declaration of Elaine Nicoloudakis

Nos. 1-20: OVERRULED.

III. Discussion

A. Legal Standard: Motion to Compel Arbitration

“A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (CCP § 1281.)

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” (CCP § 1281.2.)

B. Existence of An Arbitration Agreement

1. Legal Standard

“[I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. [citations] General principles of California contract law guide the court in making this determination.” (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541; *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1128 [quoting *Mendez*].)”

“The party seeking arbitration bears the burden of proving the existence of an arbitration agreement[.]” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) “A party's acceptance of an agreement to arbitrate may be express,

as where a party signs the agreement. A signed agreement is not necessary, however, and a party's acceptance may be implied in fact[.]” (*Id.*)

“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544; see also Cal. Rules of Court, rule 3.1330.) “[E]lectronic and handwritten signatures have the same legal effect and are equally enforceable.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 168 [citing Civ. Code § 1633.7(a)-(b).]) “An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (Civ. Code § 1633.9(a).) “The effect of an electronic record or electronic signature attributed to a person under subdivision (a) is determined from the context and surrounding circumstances at the time of its creation, execution, or adoption, including the parties’ agreement, if any, and otherwise as provided by law.” (Civ. Code § 1633.9(b).)

2. Defendant Has Established the Existence of an Arbitration Agreement

Defendant has met its burden of proving that Plaintiff agreed to the Dispute Resolution Agreement (“DRA”). Defendant produced the DRA, Plaintiff’s electronic acknowledgment, the Equifax activity records, and records of a second acknowledgment through EssilorLuxottica’s internal system. (Nicoloudakis Decl., ¶¶ 14-19 and Exs. A-C.)

Nicoloudakis explains that an applicant receives a unique username and temporary password from Equifax, must create a new confidential password before accessing the onboarding platform, and must use those credentials to complete assigned activities. Luxottica cannot view the password or perform activities through the applicant’s account. The platform automatically records the activities completed and their date and time. (Nicoloudakis Decl., ¶¶ 6-14.)

The records show that the account assigned to Plaintiff completed several personal onboarding activities on November 7, 2024, including verifying personal information, identifying an emergency contact, completing a W-4, and submitting direct-deposit information. The same account then completed the “2023 Employee Guide (US)” activity, checked boxes acknowledging receipt and acceptance of the DRA, and entered an electronic signature. Plaintiff subsequently completed a second acknowledgment through EssilorLuxottica’s internal system. (Nicoloudakis Decl., ¶¶ 15-18 and Exs. B-C.)

The appearance of “Ashey Adams,” rather than “Ashley Adams,” on the electronic acknowledgment does not materially undermine attribution. The same spelling appears throughout the account records, and the acknowledgment was completed through the same password-protected account used to submit Plaintiff’s tax, direct-deposit, and other personal employment information. Moreover, the record presented does not include sworn testimony from Plaintiff denying that she used the account, completed the onboarding activities, or electronically acknowledged the DRA.

These circumstances are sufficient to establish by a preponderance of the evidence that the electronic acknowledgment was Plaintiff's act. (Civ. Code, § 1633.9; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060-1062.) Defendant has therefore established the existence of a written agreement to arbitrate.

The apparent template and date errors in the Fahimi declaration do not alter this conclusion. Formation is independently established through the Nicoloudakis declaration and its exhibits. Fahimi's declaration principally concerns the parties' pre-motion communications.

C. Scope of the Agreement & Delegation Clause

"The scope of arbitration is a matter of agreement between the parties[.]" (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 763.) "The party opposing arbitration has the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint." (*Id.* at p. 764.) Plaintiff has the burden to show that the provision does not cover the claims alleged. (*Id.*) "[N]o dispute may be ordered to arbitration unless it is within the scope of the arbitration agreement." (*Titolo v. Cano* (2007) 157 Cal.App.4th 310, 317.) "In determining the scope of an arbitration clause, '[t]he court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made [citation].'" (*Victoria v. Superior Court* (1985) 40 Cal.3d 734, 744 [internal quotation marks omitted].) "[T]he terms of the specific arbitration clause under consideration must reasonably cover the dispute as to which arbitration is requested." (*Bono v. David* (2007) 147 Cal.App.4th 1055, 1063.) "[T]he decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is 'broad' or 'narrow.'" (*Id.* at p. 1067.) "A 'broad' clause includes those using language such as '*any claim arising from or related to this agreement*'." (*Id.*)

"It is well-settled under both state and federal law 'that absent the parties' commitment of the arbitrability decision to an arbitrator, disagreements over whether a particular dispute is within the scope of an arbitration provision are ordinarily the responsibility of a court.'" (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 765 [quoting *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 249].) "There is a strong presumption that courts should determine the jurisdiction of arbitrators." (*Mendoza, supra*, at p. 765 [internal quotation marks omitted].)

Here, the DRA generally delegates to the arbitrator disputes concerning the agreement's validity, scope, applicability, enforceability, and waiver. That language clearly and unmistakably delegates ordinary arbitrability questions to the arbitrator. (Nicoloudakis Decl., Ex. A, § 1.)

The Court nevertheless must decide whether the parties formed an agreement in the first instance, which it has determined above to exist. The DRA expressly reserves for a court any challenge to the validity, enforceability, applicability, or unconscionability of the PAGA Individual Action Requirement. Accordingly, the Court determines formation and the enforceability of the PAGA provision; other disputes within the delegation clause are for the arbitrator. The Agreement is written to encompass the asserted claims here. Thus, the dispute falls within the scope of the Agreement.

D. Applicability of the FAA

The Agreement provides for application of the Federal Arbitration Act, and Plaintiff does not dispute same. Thus, the FAA applies.

E. Defenses to Arbitration: Unconscionability

1. Framework

“Once an agreement to arbitrate has been proved, the burden shifts to the party opposing arbitration to establish a defense to the enforcement of the agreement, including the burden of demonstrating that the exemption [from arbitration] applies.” (*Nixon v. AmeriHome Mortgage Co., LLC*, *supra*, 67 Cal.App.5th at p. 946 [internal quotation marks and citation omitted].)

“Unconscionability in a contract is one reason a court may decline enforcement.” (*Lange v. Monster Energy Co.* (2020) 46 Cal.App.5th 436, 445.) “If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Civ. Code § 1670.5(a); see also *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505 “[A]n unconscionability assessment focuses on circumstances known at the time the agreement was made.”].)

“The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

“Unconscionability consists of both procedural and substantive elements. The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.) “Both procedural unconscionability and substantive unconscionability must be shown, but they need not be present in the same degree and are evaluated on a sliding scale.” (*Id.* at p. 247 [quoting in part *Armendariz v. Foundation Health Psychare Services, Inc.* (2000) 24 Cal.4th at p. 83, 114 (internal quotation marks omitted)].) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz, supra*, at p. 114.)

“The party resisting arbitration bears the burden of proving unconscionability.” (*Pinnacle Museum Tower, supra*, at p. 247.)

2. Plaintiff Has Not Established Unconscionability

The DRA was presented as a condition of employment on a standardized basis, which establishes some procedural unconscionability. The degree is limited, however. The onboarding materials separately identified the DRA, instructed Plaintiff to review it, provided a link through which it could be read or printed, and required Plaintiff to check a box specifically stating that she had received, read, understood, and agreed to its terms. The agreement clearly states that arbitration replaces trial before a judge or jury. There is no evidence that Plaintiff was given only a few minutes to review the agreement, prevented from reading it, denied access to its terms, misled about its nature, or subjected to pressure beyond the ordinary requirement that an applicant complete onboarding documents. (Nicoloudakis Decl., ¶¶ 11-18 & Exs. A-D.)

Plaintiff also has not shown substantive unconscionability. The obligation to arbitrate is mutual and applies to covered claims by either Plaintiff or the Company. The agreement provides for a neutral arbitrator, arbitration near Plaintiff's last work location, document requests, interrogatories, fact and expert depositions, subpoenas, and additional discovery upon a showing of need. It authorizes dispositive motions, requires application of governing substantive law, permits all remedies available on an individual claim, and requires a written award explaining the factual and legal basis for the decision. Luxottica must pay the arbitrator's fees and all costs unique to arbitration, while Plaintiff cannot be charged more in initial fees than she would pay to file in court. (Nicoloudakis Decl., Ex. A, §§ 3-8.)

The provisions satisfy the minimum requirements identified in *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83. The limited procedural unconscionability associated with an adhesive employment agreement, without a substantively unconscionable term, does not justify refusing enforcement.

F. Stay of Non-Individual PAGA Claims

“[W]here a plaintiff has filed a PAGA action comprised of individual and non-individual claims, an order compelling arbitration of individual claims does not strip the plaintiff of standing to litigate non-individual claims in court.” (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1123.) “Nothing in PAGA or any other relevant statute suggests that arbitrating individual claims effects a severance. When a case includes arbitrable and nonarbitrable issues, the issues may be adjudicated in different forums while remaining part of the same action.” (*Id.* at p. 1124.)

“[C]ase law establishes that a stay of proceedings as to any inarbitrable claims is appropriate until arbitration of any arbitrable claims is concluded.” (*McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, 966.)

Labor Code § 2699, subdivision (a), provides as follows:

Notwithstanding any other provision of law, any provision of this code that provides for a civil penalty to be assessed and collected by the Labor and Workforce Development Agency or any of its departments, divisions, commissions, boards, agencies, or employees, for a violation of this code, may, as an alternative, be recovered through a civil action brought by an aggrieved employee on behalf of the employee and other current or former employees

against whom a violation of the same provision was committed pursuant to the procedures specified in Section 2699.3.

(Lab. Code § 2699(a).)

Subdivision (c) defines “aggrieved employee,” in relevant part, as “any person who was employed by the alleged violator and personally suffered each of the violations alleged during the period prescribed[.]” (Lab. Code § 2699(c)(1).)

The DRA broadly covers disputes arising from Plaintiff’s employment, including claims concerning classification, minimum wages, overtime, meal and rest periods, reimbursement of expenses, compensation, and separation from employment. Those subjects encompass every alleged Labor Code violation on which Plaintiff bases her PAGA action. (Nicoloudakis Decl., Ex. A, § 1.)

Section 7 specifically provides that Plaintiff and the Company “agree to arbitrate PAGA claims on an individual basis only” and that any claim under PAGA to recover civil penalties or other relief based on Plaintiff’s own violations must be arbitrated. The arbitrator is not authorized to adjudicate PAGA claims based on violations suffered by other employees. (Nicoloudakis Decl., Ex. A, § 7.)

Plaintiff characterizes this action as representative-only and stated in her LWDA notice that she did not intend to seek individual relief unless required by future precedent or a court ruling. Nevertheless, the operative complaint repeatedly alleges that Plaintiff personally suffered each of the asserted violations. It alleges that Plaintiff herself was misclassified, denied meal and rest periods, underpaid minimum and overtime wages, issued inaccurate wage statements, denied reimbursement, and not paid all compensation upon separation. It seeks PAGA penalties “on behalf of herself and all other aggrieved employees.” (Compl., ¶¶ 10, 24-29, 35-47, 49-64.)

Under *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, the portion of a PAGA action premised on Labor Code violations personally suffered by the plaintiff constitutes the plaintiff’s individual PAGA claim. The FAA permits the parties to divide that component from claims based on violations suffered by other employees and to require the individual component to proceed in arbitration. (*Id.* at pp. 661-663.)

Balderas v. Fresh Start Harvesting, Inc. (2024) 101 Cal.App.5th 533 does not require a different result. *Balderas* held that a plaintiff need not pursue a separate individual claim to possess standing to litigate representative PAGA claims. It did not hold that a court must disregard an enforceable arbitration agreement where the operative pleading affirmatively alleges that the plaintiff personally suffered the violations at issue and seeks PAGA penalties on behalf of herself as well as others. Nor does compelling arbitration of that component deprive Plaintiff of standing to litigate the remaining claims. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1121-1124.)

Unlike a complaint that expressly and exclusively pleads nonindividual PAGA claims, the operative complaint here alleges that Plaintiff personally suffered each category of Labor Code

violation and seeks PAGA relief on behalf of herself and other aggrieved employees. The existence of an individual component therefore follows from the allegations actually pleaded, rather than from a categorical rule that every PAGA action necessarily includes an individual claim. Thus, regardless of how the Supreme Court ultimately resolves *Leeper*, the present complaint includes claims predicated on violations allegedly suffered by Plaintiff herself, and those claims fall within the DRA's individual PAGA provision.

The PAGA provision also does not constitute an impermissible wholesale waiver. It requires arbitration only of Plaintiff's individual PAGA claims, prohibits the arbitrator from adjudicating claims based on violations suffered by other employees, and expressly provides for severance and court adjudication of any portion that cannot lawfully be arbitrated. It is therefore materially consistent with the division approved in *Viking River*.

Plaintiff's individual PAGA claims must be compelled to arbitration.

Plaintiff retains standing under *Adolph* to litigate her nonindividual PAGA claims after her individual claims are sent to arbitration. Those claims should not be dismissed.

A stay is appropriate, however. Whether Plaintiff personally suffered the alleged violations bears directly on her status as an aggrieved employee and may affect her ability to recover penalties based on violations suffered by other employees. Proceeding simultaneously in court would create a risk of inconsistent determinations and duplicate litigation concerning the same employment practices.

Accordingly, the nonindividual PAGA claims, and all discovery and other proceedings concerning those claims, should be stayed pending completion of the arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4; *Adolph*, supra, 14 Cal.5th at pp. 1123-1124; *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, 966.)

IV. Disposition

Defendant Luxottica of America, Inc.'s Motion to Compel Arbitration of Individual PAGA Claims and to Stay Representative PAGA Claims is GRANTED.

Plaintiff Ashley Adams is ordered to submit to binding arbitration her individual PAGA claims, that is, her claims for PAGA civil penalties or other PAGA relief predicated on Labor Code violations allegedly suffered by Plaintiff herself, in accordance with the parties' Dispute Resolution Agreement.

Plaintiff's nonindividual PAGA claims based on alleged violations suffered by other employees are not dismissed. Those claims, and all further proceedings and discovery in this action, are STAYED pending completion of the arbitration.

The Court sets a status conference re: Arbitration on **August 3, 2027 at 8:30 a.m.** The parties are ordered to file a joint report concerning case status 10 days prior to the status conference.

Defendant to give notice.